

SEE ALSO Newsletter of June 6, 2024

[doc. web n. 10019523]

Provision of April 11, 2024

Register of provisions

n. 235 of April 11, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Counsel Fabio Mattei, general secretary;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers assigned to the Guarantor for the

protection of personal data, approved by

resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

Having seen the documentation in the records;

Having seen the observations made by the

general secretary pursuant to Article 15 of the Guarantor

Regulation No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

Reporting Prof. Ginevra Cerrina Feroni;

PREMISE

1. Introduction.

With a complaint submitted pursuant to Article 77 of

the Regulation, Mr. XX, as a participant in the

"public competition for titles and exams, for 1858 positions

of social protection consultant in the roles of

INPS personnel, area C, economic position C1"

complained about the publication, on the website of the National Institute of Social Security (hereinafter "INPS") - on the page dedicated to the aforementioned

procedure - of numerous acts and documents including the lists of those admitted and not admitted to the written and oral tests and the list of participants containing the evaluation of titles by the Competition Commission, indicating the score attributed to each candidate. This circumstance subsequently led to the sharing of the aforementioned documents, available on the institutional website of INPS, also on social networks by third parties.

Following the checks carried out by the Office, recorded in the documents, it was ascertained that on the institutional website of INPS, accessing the URL <https://...> lists and documents containing personal data related to thousands of interested parties, participants in the procedure, were published and indexed on general search engines.

2. The investigative activity.

With a note dated XX (prot. n. XX), INPS, in response to a request for information from the Guarantor (note prot. n. XX of XX), stated, in particular, that:

"on the same day [of receiving the request for information from this Authority] it removed from the institutional website of the Institute the following documents: THE NOTICE containing the DIARY of the pre-selection test; the SCHEDULE OF WRITTEN TESTS; the "SCHEDULE OF ORAL TESTS"; the lists of "ADMITTED TO ORAL TESTS" showing the score achieved by each in the first and second written test; the lists of "NOT ADMITTED" to the oral tests; the lists of ADMITTED to the written tests; the EVALUATION OF THE TITLES of candidates admitted to the oral tests; the clarification regarding the exact name of a candidate included in the LIST OF ADMITTED TO WRITTEN TESTS"; "The publication of the above documents, containing exclusively the name and surname of the candidates, as well as in cases of homonymy also the date of birth, was carried out because it was deemed a tool of maximum transparency in a public competition procedure"; "no other data was disseminated and each candidate had the opportunity to access the platform made available by the Company that managed the conduct of the tests (at the link <https://...>) for the consultation of the written tests."

With a note dated XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts that emerged following the investigative activity, notified INPS, pursuant to Article 166, paragraph

5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5, 6 of the Regulation, as well as 2-ter of the Code, inviting the aforementioned holder to submit to the Guarantor defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated XX, prot. n. XX, INPS, through its lawyers, submitted a memorandum.

defensive statement, declaring, in particular, that:

“the Central Directorate of Human Resources [of INPS] has declared that it has immediately removed [...] from the institutional website of the Institute the documents in question, replacing them with other documents in which the identification of candidates occurs through a randomized application ID that does not correspond in any way to either an alphabetical list or a score list”;

in particular “based on Article 70, paragraph 13 of Legislative Decree No. 165/2001, public administrations are allowed, within their respective regulations, to adopt their own regulations for the recruitment of personnel. The Institute has adopted its own “Regulation for the recruitment procedures for the permanent non-executive personnel at INPS,” with Presidential Determination No. XX of XX”;

thus, INPS has invoked the “Regulation for the recruitment of personnel” and Article 6 of the announcement related to the pre-selection which establishes that “The list of candidates admitted to participate in the written tests is published with notification value for all intents and purposes on the INPS website at www.inps.it”;

“Article 7, paragraph 3 and 8, paragraph 3 of the announcement, which concern respectively the first and second

written tests, provide that “The score is promptly published on the INPS website, at www.inps.it in the section ‘Notices, announcements, and billing’ subsection ‘Competitions’.” Article 10 of the announcement, concerning the oral test, provides that “The location, date, and time of the oral test are published on the INPS website ... The candidate who does not appear on the specified day, place, and time without justified reason is excluded from the competition.”

Article 11 states that “The final ranking and the specific ranking of the winners ... are published on the institutional website of INPS at the following address:

www.inps.it”;

“with the application for participation, the candidate expresses their “consent to the processing of personal data,” also for needs subsequent to the completion of the competition related

to the establishment of the employment relationship (Article 3, paragraph 3, letter l) of the Regulation for the recruitment of personnel and Article 3, paragraph 9, letter p) of the announcement”;

“the rationale of the regulation contained in the “Regulation for the recruitment of personnel” and the announcement, [...]

corresponds to the Institute's need to allow

the deadlines for appeals for all interested parties who do not pass the relevant phases of the procedure to elapse, in order to obtain as soon as possible the consolidation and have a definitive final ranking,”;

“that said, Article 2-ter of the Code, as amended

by Article 9 of Decree Law No. 139/2021, converted

with amendments by Law No. 205/2021, provides

that the legal basis for processing may

consist of law, regulation, and also in

general administrative acts. And according to

the consistent orientation of the jurisprudence, competition

announcements (like calls for tenders) are certainly

general administrative acts with which

the existence of a procedure is made known and its

conduct is regulated, representing the lex

specialis of the procedure. The Full Assembly of the

Council of State has clarified that announcements are “general

administrative acts, intended for the concrete care of

public interests, with effects towards a plurality of

recipients, not determined in the provisions, but clearly

determinable” (Cons. St., Ad. Plen., January 29,

2003, No. 1)”;

“in this case, based on the legal framework

of reference, the publication on the institutional website

of the acts and documents of the competition,

finds its foundation precisely in the “Regulation for

the recruitment of personnel of INPS” approved

with Presidential Determination No. XX of XX and

in the competition announcement approved by the resolution of

the Institute's Board of Directors No. XX of

XX. Therefore, it cannot be considered that there has been a

violation of Articles 5, 6 of the Regulation and

of Article 2-ter of the Code”;

“furthermore, it is precisely Article 6, paragraph 1, letter f) of

the Regulation that qualifies as a prerequisite for

the legitimacy of the processing also the necessity for

the purpose of pursuing a legitimate interest of the data controller. “in any case, INPS has never

published sensitive or particular data, but only common personal data – such as name, surname,

score – necessary and indispensable so that in

compliance with the principles of minimization and of

cost-effectiveness of procedures the publication can

have – as provided in the announcement – full value of

notification for all intents and purposes. No other

unnecessary common data, such as tax code, address, phone number,

email, etc., have been published either.”;

“the publication of the acts and documents in

question, concerned only common data

necessary for the pursuit of a legitimate interest of the administration (see Cons. Stato, section VI, January 19, 2021, No. 587 and further jurisprudential references)”;

“in this regard, it is noted that, following the note of XX from the Department of Public Realities, the Institute has proceeded on the same day – in a spirit of maximum collaboration and without even entering into the merits of the issue – to remove from the Competitions section of the institutional website” the aforementioned documentation;

“it is highlighted that it concerned only common personal data (name, surname, score) that remained published for only a few months [...] for a time, therefore, that corresponds substantially to the deadlines provided by law for the appeal, which is sixty days, in addition to the suspension of the

****Terms for the holiday period (between August 1 and August 31).****

The INPS, furthermore, during the hearing pursuant to Article 166, paragraph 6, of the Code, represented, among other things, that (see minutes prot. n. XX of XX):

- “The impact on the rights of the interested parties can be considered practically negligible, if not even null, considering that, during the time of the competitive procedure and in the subsequent period, there has been only one report of alleged violation of confidentiality by candidate XX.”

- “In particular, Mr. XX complained mainly about the sharing of his data on a social group that occurred through photos taken by third parties and their dissemination without any authorization or consent from him. Therefore, the complaint appears to concern circumstances different from those that are the subject of this proceeding, namely unauthorized behavior consisting of the abusive dissemination of data on a social platform attributable to third parties, and not to the Institute.”

****3. Outcome of the investigative activity.****

****3.1 The regulatory framework.****

The regulation on the protection of personal data provides that public entities, even when operating in the conduct of competitive, selective, or otherwise evaluative procedures, preliminary to the establishment of an employment relationship, may process the personal data of the interested parties (Article 4, no. 1, of the Regulation) if the processing is necessary “to comply with a legal obligation to which the data controller is subject” (consider specific obligations provided for by national legislation “for hiring purposes,” Articles 6, paragraph 1, letter c), 9, paragraphs 2, letter b) and 4; 88 of the Regulation) or “for the performance of a task carried out in the public interest or related to the exercise of public powers vested in the data controller” (Article 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter of the Code).

Such processing must, however, be based on Union or Member State law that must pursue a public interest objective and be proportionate to the pursuit of the same. The purpose of the processing must be necessary for the execution of a task carried out in the public interest or related to the exercise of public powers vested in the data controller (see Article 6, paragraph 3, of the Regulation and Article 2-ter of the Code).

National legislation has introduced more specific provisions to adapt the application of the rules of the Regulation, determining more precisely specific requirements for processing, as well as other measures aimed at ensuring lawful and fair processing (Article 6, paragraph 2 of the Regulation) and, in this context, has provided that the legal basis provided for by Article 6, paragraph 3, letter b), of the Regulation, consists exclusively of a legal norm or, in cases provided for by law, of regulation or general administrative acts, which include public competition notices (Article 2-ter of the Code).

The data controller is required to comply with the principles regarding data protection, including that of “lawfulness, fairness, and transparency” as well as “minimization,” according to which personal data must be “processed lawfully, fairly, and transparently in relation to the data subject” and must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letters a) and c) of the Regulation).

****3.2 The dissemination of personal data.****

Preliminarily, it is stated that this provision concerns exclusively the dissemination on the INPS website of personal data of numerous participants in the “public competition for titles and exams, for 1858 positions of social protection consultant in the roles of INPS personnel, area C, economic position C1,” since the profiles related to the sharing by third parties of the same data “on a social group” will be examined within a separate and autonomous investigation.

During the investigation, it was ascertained that the INPS published on its institutional website personal data of thousands of participants (over 5000) in the aforementioned competitive procedure contained in the lists of those admitted and not admitted to the written and oral tests and in the nominative list concerning the evaluation of titles by the Competition Commission with the indication of the score attributed to each candidate.

In general, it is noted that the notice of the competition issued by the Institute regulates the subsequent conduct of the procedure culminating in the approval of the final ranking of candidates positioned in a useful position in the merit ranking. In compliance with the provisions of d.P.R. n. 487/1994

“Regulation containing rules on access to employment in public administrations and the methods of conducting competitions, unique competitions, and other forms of hiring in public employment,” which therefore also applies to the INPS, the act must specify a series of elements that characterize from time to time and concretely the competitive procedure.

With specific reference to the publicity of the rankings, as repeatedly stated by the Guarantor, the regulatory provisions that establish, in general, the publicity of the rankings of competitions and selective tests (see, in particular, d.P.R. January 10, 1957, n. 3; as well as Article 15 and following of d.P.R. May 9, 1994, n. 487 “Regulation containing rules on access to employment in public administrations and the methods of conducting competitions”) competence.

Competitions, unique competitions, and other forms of recruitment in public employment, also following the amendments made by Presidential Decree No. 82 of June 16, 2023, and, more generally, regarding the publicity of recruitment procedures for personnel in public administrations, Article 35 of Legislative Decree No. 165 of March 30, 2001, serve the function of allowing interested parties, participants in competitive or selective procedures, to activate forms of protection of their rights and to control the legitimacy of administrative action. However, these regulations stipulate that only the definitive rankings of successful candidates in competitions are to be published, and not the results of intermediate tests or the personal data of unsuccessful or non-admitted candidates (see Article 15, paragraph 6, of the aforementioned Presidential Decree).

The provisions regarding administrative transparency also establish specific publication obligations in the “Transparent Administration” section of the institutional website of the administrations, in particular, based on what is provided by Legislative Decree No. 33 of March 14, 2013, “Without prejudice to other legal publicity obligations, public administrations publish the competition announcements for the recruitment, for any title, of personnel within the administration, as well as the evaluation criteria of the Commission, the test outlines, and the final rankings, updated with the possible movement of eligible non-winning candidates. Public administrations publish and keep constantly updated the data referred to in paragraph 1” (Article 19, paragraphs 1 and 2).

These provisions define, from the perspective of data protection, the scope of permitted processing and constitute its legal basis by establishing limits, conditions, and prerequisites for the online publication of personal data within competitive procedures. In this context, the Guarantor has, over time, provided specific indications to public administrations regarding the precautions to be adopted for the dissemination of personal data on the Internet for the purposes of transparency and publicity of administrative action, particularly in 2014, with the “Guidelines on the processing of personal data, including those contained in administrative acts and documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities” (Provision No. 243 of May 15, 2014, web document No. 3134436, Parts I and II, especially paragraph 3.b) which, given the evolution of the regulatory framework in this area, have provided further clarifications to data

controllers and, therefore, updated what was contained in previous guidance documents on the same subject (see, in particular, the “Guidelines for the processing of personal data carried out by public entities for the purposes of publication and dissemination on the web” of March 2, 2011, web document No. 1793203).

It is also noted that the need, expressed during the investigation, to allow consultation of the aforementioned lists “in order to facilitate the methods of consulting the rankings subject to publication in accordance with the sector regulations (for purposes other than transparency) allowing the consultation of the results of the tests or the procedure only to participants in the competitive procedure,” could have been achieved by making the aforementioned lists available in a reserved area to ensure their consultability through selective access, with personal credentials, to only the candidates of the procedure, rather than through online publication accessible to anyone.

Nor can the reference to the provisions contained in the “Regulation of recruitment procedures for the hiring of non-executive personnel on a permanent basis at INPS” approved by INPS (with Presidential Determination No. XX of XX) and those contained in the competition announcement (approved by the resolution of the Board of Directors of INPS No. XX of XX) be considered relevant.

Although the public competition announcement, as a general administrative act, is a suitable source to legitimize the processing of personal data of candidates for a specific position pursuant to Article 2-ter of the Code, this act cannot contravene or modify the superior normative references, having a merely integrative effect on the legal system. The hierarchical criterion of the sources of law indeed establishes the prevalence of the higher-ranking source over that of lower level, preventing the latter from derogating or conflicting with the content of the superior source; therefore, the general administrative act does not possess the ability to make changes in the legal system—such as the unanticipated publication of the personal data of candidates participating in the competitive procedure—regarding the processing of personal data, as such an act cannot fully absorb the existing regulations, whose essential characteristics must be and remain delineated by the higher-ranking norms.

In fact, as recently clarified by the Guarantor, precisely regarding the publication of acts and documents by administrations concerning competitive and selective procedures, within the framework of the European-derived data protection regulation, in the perspective of legal certainty, as well as the principle of non-discrimination, differentiated levels of protection for personal data are not permitted—neither on a territorial basis nor at the level of individual administrations—especially when, as in the case at hand, the matter has already been subject to balancing and regulation by the legislator with uniform provisions at the national level, through the aforementioned sector provisions regarding transparency and publicity of the outcomes of competitive procedures applicable to all state administrations.

to Article 1, paragraph 2 of Legislative Decree No. 165 of 2001. In particular, regarding the possibility that, as a result of the amendments to the Code made by Decree Law No. 139 of 2021, a dissemination of personal data may be configured based on an autonomous identification of purposes by the entity, the Guarantor has recently clarified that the legal basis for processing must also be suitable in light of the “constitutional order” of the Member State, in compliance with the principle of proportionality (consideration 41 and see also Constitutional Court ruling No. 271/2005, according to which the regulation of personal data protection falls within the exclusive state competence related to the “civil order”; see, in this regard, provision No. 125 of April 13, 2023, doc web 9907846; provision No. 287 of July 6, 2023, doc web 9920145; provision No. 286 of July 6, 2023, doc web 9920116, as well as for similar considerations regarding the introduction by regional ordinance of personal data processing of employees in the emergency context due to the spread of the Covid-19 virus, provision of July 22, 2021, No. 273, doc. web No. 9683814).

In this regard, it is noted that Article 70, paragraph 13 of Legislative Decree No. 165 of 2001, invoked by the data controller, expressly states that “in the matter of recruitment” of personnel, public administrations are required to comply with the aforementioned national provisions which, as stated, constitute the legal basis for all processing, including dissemination, within the framework of

competitive procedures.

Article 2-ter of the Code indeed provides that the legal basis for processing may consist of law, regulation, and also in general administrative acts. However, in this case, the provisions of the public competition announcement cannot be invoked by INPS as a legal basis for disseminating online the personal data of participants in the competitive procedure, as a general administrative act cannot, however, derogate from, contravene, or modify the aforementioned sector regulations, which are, moreover, of primary rank (see, in particular, Article 19 of Legislative Decree No. 14 of March 2013, No. 33, as well as the pre-existing sector provisions mentioned above regarding the transparency of public competitions).

These considerations are supported by the observations contained in the recent opinion on the standard publication schemes prepared by ANAC – concerning, among other things, Article 19 of Legislative Decree No. 33/2013 – pursuant to Article 48, paragraphs 1 and 3, of the same decree (see provision of February 22, 2024, No. 92, doc. web No. 9996090), clarifying that, even in fulfilling publication obligations, it must be indicated "according to the principle of data minimization (Article 5, paragraph 2, letter c, GDPR) and the Guidelines of the Guarantor in the matter [...] the name and surname, and possibly the date of birth (for example, in case of homonymy), as well as the position in the ranking (thus excluding other unnecessary information such as place of birth, tax code, residence, etc.)".

In light of the preceding considerations, the online dissemination of numerous personal data of thousands of participants (over 5000) in the aforementioned competitive procedure announced by INPS, contained in the lists of those admitted and not admitted to the written and oral tests and in the list of participants containing the evaluation of qualifications by the Competition Commission, indicating the score assigned to each candidate, occurred in the absence of an adequate legal basis (in violation of Articles 5 and 6 of the Regulation and Article 2-ter of the Code), as deemed over time by the Guarantor in the face of similar cases within competitive procedures, even when, as in this case, no special categories of data or health data have been disseminated (see, among many, provisions No. 151 of April 28, 2022, doc. web No. 9778996; No. 170 of April 29, 2021, doc. web No. 9681778; No. 407 of November 25, 2021, doc. web No. 9732406; No. 160 of September 7, 2020, doc. web No. 1793203).

Nor is it relevant to recall the circumstance that candidates for the selection have "with the application for participation, [...] expressed their consent to the processing of personal data," as reported in the INPS note, since the processing of data aimed at the hiring of personnel by a public entity finds its legal basis in the specific sector regulations governing access to employment in public administrations and the procedures for conducting public competitions (see the aforementioned regulations) and not, instead, in the consent of the interested parties, due to the imbalance in the relationship between the data controller and the data subject (consideration No. 43 and Article 88 of the Regulation; on this point see, among many, with specific regard to the public context, in general see provision No. 317 of September 16, 2021, doc. web No. 9703988; with specific regard to the work context see provision No. 170 of April 29, 2021, doc. web No. 9681778 and No. 160 of September 17, 2020, doc. web No. 9461168; see also, in a conforming sense, EDPB Guidelines on consent under EU Regulation 2016/679 - WP 259 - of May 4, 2020, spec. paragraph 3.1.1; Opinion 2/2017 on the processing of data in the workplace, WP 249).

It is also not relevant to refer to the jurisprudence of the Council of State that refers exclusively to a possible legitimate response provided to the requester, a participant in a competitive procedure, regarding a request for access to administrative documents. In the face of specific requests for access to administrative documents, the regulatory framework does not provide for any online publication of data of participants in competitive procedures, except for the final rankings, as mentioned above. specified.

Nor can the pursuit of a legitimate interest of the data controller be invoked for the legality of the overall processing, as it cannot apply "to the processing of data carried out by public authorities" (see art. 6, par. 1, lett. f), of the Regulation (see, among many, provision no. 409 of December 1, 2022, doc web

9833530; provision no. 16 of January 14, 2021, doc web 954207).

For all the above reasons, the publication of the aforementioned documents and lists containing the personal data of the participants in the competitive procedure, as represented above, has resulted in the dissemination of personal data in the absence of an adequate legal basis, in violation of articles 5, 6 of the Regulation, as well as 2-ter of the Code.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability under art. 168 of the Code - although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by art. 11 of the Regulation of the Guarantor no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by INPS is noted for having published, on its website and indexed on general search engines, numerous acts and documents including the lists of those admitted and not admitted to the written and oral tests of the aforementioned procedure and the list of participants containing the evaluation of qualifications by the competition Commission, with the indication of the score assigned to each candidate, in violation of articles 5, 6 of the Regulation, as well as 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, art. 83, par. 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations, relating to articles 5 and 6 of the Regulation and 2-ter of the Code, are subject to the sanction provided for by art. 83, par. 5, of the Regulation, as recalled also by art. 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, since on XX, as reported in the note of XX, prot. n. XX, INPS has removed the lists containing the personal data of the participants, subject of this procedure, the prerequisites for the adoption of further corrective measures under art. 58, par. 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (articles 58, par. 2, lett. i and 83 of the Regulation; art. 166, paragraph 7, of the Code).

The Guarantor, pursuant to articles 58, par. 2, lett. i) and 83 of the Regulation as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the website of the Guarantor pursuant to article 166, paragraph 7, of the Code" (art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019).

In this regard, considering art. 83, par. 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation.

Considering that:

with specific regard to the nature and severity of the violation, the high number of affected individuals involved (over 5000) has been considered, operating under the mistaken belief that it could pursue transparency objectives of administrative action, without taking into account the current regulatory framework and the indications provided over time by the Guarantor to all public entities in this matter (both with the "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and

other obligated entities" mentioned above, and with numerous decisions on individual cases) (see art. 83, par. 2, lett. a), of the Regulation);
there are previous violations of the same provisions of the Regulation and the Code, albeit in different contexts (see art. 83, par. 2, lett. e), of the Regulation);
it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (see European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it is believed that, for the purposes of

****Quantification of the sanction, the following mitigating circumstances must be taken into consideration:****

1. With regard to the duration of the violation, the publication of the lists concerning the procedure in question occurred from June to XX (Article 83, paragraph 2, letter a) of the Regulation);
2. The INPS has offered good cooperation with the Authority during the investigation, having also stated that it removed the aforementioned lists, albeit following the request for information from the Guarantor (Article 83, paragraph 2, letter f) of the Regulation);
3. With regard to the nature of the personal data disseminated, the categories of data involved in the procedure in question do not include special categories of data (Article 83, paragraph 2, letter g) of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the administrative pecuniary sanction at €20,000 (twenty thousand) for the violation of Articles 5 and 6 of the Regulation, as well as Article 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the personal data subject to online dissemination concerned numerous candidates of the competitive procedure, it is also deemed appropriate to apply the accessory sanction of publication of this provision on the Guarantor's website, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Guarantor's Regulation No. 1/2019.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

****ALL OF THE ABOVE STATED, THE GUARANTOR****

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the National Institute of Social Security for violation of Articles 5 and 6 of the Regulation, as well as Article 2-ter of the Code, in the terms set out in the motivation;

****ORDERS****

the National Institute of Social Security - INPS, represented by the legal representative pro tempore, with registered office at Via Ciro il Grande, 21 - 00144 Rome (RM) C.F. 80078750587, to pay the sum of €20,000 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in the motivation. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

****COMMANDS****

The aforementioned Institute, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €20,000 (twenty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

****DISPOSES****

pursuant to Article 166, paragraph 7, of the Code, the publication of this provision on the Guarantor's website, considering that the conditions referred to in Article 17 of the Guarantor's Regulation No. 1/2019 are met.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, April 11, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Cerrina Feroni

****THE SECRETARY GENERAL****

Mattei